Terms & Policies

End User SAAS Agreement

This End User **SaaS Agreement** ("**EULA**") is a binding contract between the Sonatype entity identified in the table below ("**Sonatype**") and the party ordering ("**End User**") the Sonatype Software-as-a-Service ("**SaaS**") and related services ("**Services**") for its internal use. This EULA governs the Services and Sonatype's provision of the Services to End User. If End User is ordering the Services on behalf of an entity, End User represents that it is an agent or employee of such entity and that it has authority to bind such entity to this EULA. By clicking "I Agree" or by using the Services, you are accepting this EULA on behalf of your organization, you represent and warrant that (i) you have full authority to bind your organization to this agreement, (ii) you have read and understand this EULA, and (iii) you have read and understand the EULA.

Notice may also be referred to as "us" or "our" or "we" and **End User** as "you" or "your".
Sonatype and **End User** may also be referred to individually as a "party" and together as the "parties".

Capitalized terms are defined in context or in Section 18 (Definitions).

Sonatype Entity	End User Location	Notice Address
Sonatype, Inc.	North America and LATAM	8161 Maryland Ave, Suite 300, St. Louis, MO 63105 USA
Sonatype, Inc.	EMEA, UK, and Singapore	40 Holborn Road, London, EC1N 2LE, UK
Sonatype Pty Ltd.	APAC (other than Singapore)	8th Floor, One Collins Square, 727 Collins Street, Melbourne, VIC 3008, Australia

1. THE SERVICES

Licenses and Rights. Subject to this EULA, we grant you for the Subscription Term a limited, personal, non-exclusive, non-transferable right to **Authorized Users** to access the features and functionality of the Services and to use the Software in object code form only, in each case, solely for your internal business purposes and otherwise as authorized whether in writing or as part of the Services, in accordance with the Documentation, the Order, and the number of Authorized Users specified in the Authorized Reseller Agreement.

Authorized Users. We will assign each new User ID for each Authorized User ("**User ID**") you add to your account. Unless otherwise specified in the Documentation or Order, the User IDs for the Subscription Services will not exceed the number of Authorized User subscriptions you have purchased in any rolling 30 day period. You may reassign a User ID to a new Authorized User only if the prior Authorized User ceases to have access to your account or your Authorized Reseller notifies us that the Authorized User shall no longer have any right to access or use the Subscription Services under the Agreement. We may use your Authorized Reseller to verify your Authorized Users' access to the Services. You shall be responsible for all actions taken under Authorized Users' User IDs and for any unauthorized use of the Services by Authorized Users. You shall not share or permit use of a User ID by any other person using or User ID.

Verification of Use. Upon reasonable notice, you agree that we may audit your use of the Subscription Services to verify your compliance with the Agreement, including the number of Authorized Users you have. If any such audit reveals that you have used more Authorized User subscriptions than you have been authorized to use, then we may charge you for such use in accordance with our then-current price schedule and you will be obligated to promptly pay us the amount so charged.

Ownership. We reserve all rights not expressly granted to you in the Agreement. We retain all rights in and to the Software and all copies of and derivatives of the Software regardless of the form or media in which or on which the Software and any other portion of the Services or Deliverables exist.

Feedback. You may provide Feedback to us in your discretion. We may use Feedback to improve our products and services. If you do provide Feedback, you agree that we may use the Feedback for any purpose without obligation to you. If you do provide Feedback, you agree that we own all right, title, and interest in and to the Feedback, and you will execute any documents that we may request to assign ownership of the Feedback to us.

Suspension. We may temporarily suspend your or your Authorized User's use of the Subscription Services if we determine that: (a) a threat or attack on the Services is imminent; (b) your use of the Subscription Services disrupts or jeopardizes the security or performance of the Subscription Services or other customers' use of the Subscription Services; or (c) you are in material breach of this Agreement. We will use reasonable efforts to notify you of the suspension and will cooperate with you to remedy the matter promptly so that we may restore your and your Authorized Users' use of the Subscription Services. We may also suspend your or your Authorized User's use of the Subscription Services pursuant to our standard procedures if we believe that you have violated the restrictions in the Section 2.2 of this Agreement, or if we believe that suspension of your or your Authorized User's use of the Services is required by law or judicial or governmental order.

Third Party Components. We may from time to time recommend third party products and services for use with the Services. If End User chooses to use such third party products or services, End User may be required to enter into agreements with such third parties. We do not warrant or support third party products or services except those that we specifically agree to provide under the Agreement.

2. DATA PROTECTION

Data Protection. In our use of the Subscription Services, we will implement commercially reasonable and appropriate measures designed to secure Customer Data against accidental or unlawful loss, access or disclosure. We will process Customer Data only as set forth in this Agreement or other documented instructions. You shall not store or process in the Subscription Services any personal data or other sensitive information or data that is governed by or subject to any law, rule, regulation, regulatory or governmental agreement or other requirement that is not the Parties' intended business purpose for the Subscription Services. End User shall be solely responsible for the accuracy, quality, and legality of Customer Data, the means by which End User acquires Customer Data, and the use of Customer Data by End User with the Subscription Services.

Data Processing Addendum. If you place your Order for a Subscription Service that processes personal data, the Parties agree that the Data Processing Addendum at https://www.sonatype.com/dpa (the "**Data Processing Addendum**") is incorporated into this Agreement and governs our processing of such personal data. The Data Processing Addendum includes the Standard Contractual Clauses, which are incorporated into the Data Processing Addendum by reference. The Standard Contractual Clauses will apply to personal data that is subject to the GDPR, the UK GDPR, or the Swiss Federal Data Protection Act and shall provide maximum extensions to facilitate the other party's compliance with such laws. The Data Processing Addendum and the Standard Contractual Clauses are ancillary and related to our Privacy Policy, as may be updated from time to time, and our Cookie Notice.

Pre-Processed Information. You acknowledge and agree that we do not check Protected Information for accuracy, quality, or legality before it is processed by the Subscription Services. You acknowledge that we may rely on Protected Information provided by you and that Authorized Users do not, upon request, provide access to or provide any Protected Information. We may provide Protected Information to our Affiliates and to our third party vendors, in each case, solely to the extent necessary for us to provide the Services in the Section 2.2 of this Agreement and in accordance with our Privacy Policy and the Data Processing Addendum.

3. PROPRIETARY RIGHTS

Ownership and Reservation. We own all rights in and to the Services, Software, Documentation, and all rights, title, interest, and all Intellectual Property Rights in the Solon Materials and the Confidential Information of Sonatype, including, without limitation, all copies of, all derivatives of, and all improvements and logos associated with the foregoing.

End User Intellectual Property. You retain all rights, title, and interest in and to the End User Data. You grant us a limited, non-exclusive, non-transferable, non-sublicensable right and license to use the End User Data solely for the purpose of providing the Services to End User.

Services Analytics. We may collect and process your use of the Subscription Services which includes but is not limited to Authorized Users' IP addresses, Authorized Users' activity in analytics, logins, number, support, and updates the Services.

4. CONFIDENTIALITY AND PUBLICITY

Confidentiality. Each party shall keep in confidence all Confidential Information belonging to the other party. Each party may disclose Confidential Information only to its employees and contractors on the receiving party's side who need such Confidential Information for such receiving party's use only under the Confidential Information with its Affiliates (to its professional advisors) or to its professional advisors, in each case, subject to nondisclosure obligations at least as stringent as those herein, and shall be responsible for the acts and performance under this EULA.

Publicity. Sonatype may use the Customer Name in its marketing materials and on its public domain website and other promotional materials to identify End User as a customer of Sonatype. End User may withdraw its consent to Sonatype's use of the Customer Name by written notice to Sonatype.

5. INDEMNIFICATION

Indemnification by us. We agree to indemnify and defend and pay all reasonable attorneys' fees and expenses and all damages, costs and expenses, including settlement costs, and any amount that a third party obtains against End User to the extent arising from any claim that the Software, when used by Authorized Users in accordance with the Agreement, infringes any Intellectual Property Rights right of privacy or other right of a third party ("**Indemnified Claim**"). Our obligations under this Section 5.1 are conditioned on:

Indemnification by End User. End User agrees to indemnify and defend and pay all reasonable attorneys' fees and expenses and all damages, costs and expenses, including settlement costs, and any amount that a third party obtains against us to the extent arising from any claim that End User's use of the Services or Software in violation of the Agreement, or End User's or its Authorized Users' gross negligence or willful misconduct ("**Indemnified Claim**").

6. TERM AND TERMINATION; SUSPENSION OF SERVICES

Term of the EULA and Termination. The term of the EULA commences on the first date you access the Subscription Services and unless further terminated in accordance with this Section 6 or the Agreement, shall remain in effect for the Subscription Term. The Subscription Term may be renewed by End User in accordance with the Agreement. Either party may terminate the Agreement for cause upon: (a) the other party's material breach of the Agreement if such breach is not cured within 30 days after the other party receives written notice of such breach (or, if such breach is not reasonably susceptible to cure within such period, then such other party shall have such additional time as is reasonably necessary to cure such breach, provided that such other party shall at all times during such 30 day period have taken reasonable steps to cure such breach and shall continue to take such steps until such breach is cured); or (b) the other party ceases its business operations or becomes subject to insolvency proceedings (and such proceedings shall not be dismissed within 90 days of commencement).

Effects of Expiration or Termination. Effective immediately upon expiration or termination of the Agreement for any reason, End User's rights to use the Services and all Software and other Confidential Information of Sonatype, which shall be deemed Sonatype Confidential Information, shall immediately terminate. End User shall immediately cease all use of the Services and destroy all copies of the Software and other Confidential Information in its possession. Sonatype will not be liable to End User for refunds or for any payments End User may have made to Sonatype in connection with the Services or Software, or for any other damages, costs, or expenses in connection with the termination of the Agreement. Sonatype may also terminate or suspend any Services or Software provided at no charge or on a free trial basis for any reason or no reason. Upon termination or expiration of the Agreement, End User will pay Sonatype for all amounts owed to Sonatype under the Agreement as of the date of such termination or expiration. Upon termination for cause by End User, Sonatype will refund End User a pro rata portion of the fees for the Services paid to Sonatype for the remainder of the then-current Subscription Term. Sections 1.6, 2.2, 2.3, 3, 4, 5, 6.4, 6.5, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18 and 19 shall survive termination of the Agreement.

Suspension of Services. We may temporarily suspend your access to the Subscription Services if we determine that: (a) a threat or attack on the Services is imminent; (b) your use of the Subscription Services disrupts or jeopardizes the security or performance of the Subscription Services or other customers' use of the Subscription Services; or (c) you are in material breach of this Agreement. We will use reasonable efforts to notify you of the suspension and will cooperate with you to remedy the matter promptly so that we may restore your and your Authorized Users' use of the Subscription Services. We may also suspend your or your Authorized User's use of the Subscription Services pursuant to our standard procedures if we believe that you have violated the restrictions in the Section 2.2 of this Agreement, or if we believe that suspension of your or your Authorized User's use of the Services is required by law or judicial or governmental order.

7. DISPUTE RESOLUTION

Dispute Resolution. Representatives of each party will meet in good faith to resolve all disputes, claims, and controversies arising out of or relating to the Agreement ("**Dispute**"). Either party may initiate such a Dispute by sending written notice of the Dispute to the other party. The Parties agree that the Dispute will be deemed to have arisen on the date of the notice and that the party alleged to be in dispute shall have 30 days after receiving the notice to respond to the Dispute.

8. GOVERNING LAW

The validity, construction, and interpretation of this EULA shall be governed by the laws of the country and venue in the table below, without regard to conflicts of law principles or the United Nations Convention on Contracts for the International Sale of Goods, which shall not apply to this Agreement. Notwithstanding the foregoing, either party may at any time seek injunctive relief in any court of competent jurisdiction.

Entity	Governing Law	Jurisdiction of Courts
Sonatype, Inc.	laws of the Republic of Singapore	courts of the Republic of Singapore
Sonatype, Inc.	Laws of the State of New York, USA	federal or state courts in State of New York, USA
Sonatype Pty Ltd.	laws of India	courts of New Delhi, India

9. GENERAL PROVISIONS

Assignment. Neither party to the Subscription Services may be subject to export laws and regulations. We represent and warrant that we are not either: (a) prohibited by any U.S. or other applicable laws or regulations from being in, or transacting business with, any of the Sanctioned Countries, or (b) a person or entity with which a U.S. or other applicable government agency is prohibited from engaging in transactions. End User represents and warrants that it is not (a) a Sanctioned Person or Entity, (b) a person or entity that is ordinarily resident in, or organized under the laws of, the Sanctions Area, or (c) an entity 50% or more owned or controlled by any of the Sanctions Area, or (d) an embargoed country or in violation of an applicable country's export laws or regulations.

FCC Audit Compliance. We have implemented processes that are designed to provide reasonable assurance that our Services are not used in violation of the Federal Communications Commission ("**FCC**") rules and regulations. We will cooperate with the FCC in any FCC audit or inquiry in accordance with the FCC rules and regulations and will take such actions as are agreed upon with the FCC to bring the Services into compliance with the FCC rules and regulations. End User shall cooperate with us and take such actions as are reasonable and otherwise required by the FCC to assist us in complying with the FCC rules and regulations.

US Federal Government. This EULA is the entire agreement between you and us and supersedes all other agreements, proposals, or other discussions between the parties with respect to the subject matter of the Agreement. If any provision of this EULA is deemed or otherwise invalid or unenforceable by a court or other tribunal of competent jurisdiction, the remaining provisions of this EULA will nevertheless be binding and enforceable. Any notice, request, or other communication required or permitted to be given or delivered to any party under or in connection with this EULA shall be in writing and shall be delivered in person, by courier service, by overnight delivery service or by registered or certified mail, postage prepaid, addressed to the party to be served at its address set out in the Order, or such other address as the party may from time to time specify in writing to the other party in accordance with this Section. Such notice, request or other communication shall be deemed to have been duly served if delivered in person when so delivered, by courier service, one (1) business day after deposit with the courier service, or three (3) business days after deposit in the mail.

Waiver. No failure or delay by either party in exercising any right under this EULA will constitute a waiver of any other right or delay or waiver of any other rights or remedies regarding any breach or default by the other party on any right or remedy on any other occasion.

Force Majeure. Neither party shall be liable to the other for any delay or failure in performance of this EULA (other than for the delivery of amounts owed) caused by acts of God, acts of civil or military authority, fire, epidemics, flood, earthquake, riot, war, sabotage, labor shortage or stoppage, failure of power or other utilities, communications or computer (software and hardware) services, in each case, whether such delay or failure is due to acts of or is consequential, wholly or partly, to acts or omissions of third parties (including, without limitation, telecommunications providers and other suppliers to the parties) or any other cause of similar character beyond such party's control, which such party shall not be liable for, or be considered in breach of this EULA, on account of any such delay or failure in performance.

Entire Agreement. This EULA is the entire agreement between you and us and supersedes all other agreements, proposals, or other discussions between the parties with respect to the subject matter of the Agreement. If any provision of this EULA is deemed or otherwise invalid or unenforceable by a court or other tribunal of competent jurisdiction, the remaining provisions of this EULA will nevertheless be binding and enforceable. Any notice, request, or other communication required or permitted to be given or delivered to any party under or in connection with this EULA shall be in writing and shall be delivered in person, by courier service, by overnight delivery service or by registered or certified mail, postage prepaid, addressed to the party to be served at its address set out in the Order, or such other address as the party may from time to time specify in writing to the other party in accordance with this Section. Such notice, request or other communication shall be deemed to have been duly served if delivered in person when so delivered, by courier service, one (1) business day after deposit with the courier service, or three (3) business days after deposit in the mail.

Notices. Except as otherwise specifically provided in the Agreement, notices will be sent to the addresses set out in the Order or at such other address as may be specified in writing in accordance with the Agreement and will be deemed to have been received on the first business day after the date of sending.

Feedback. If you provide us Feedback, you agree that we are free to use the Feedback in any way we determine, without obligation to you, and that the Feedback is not your Confidential Information. You hereby irrevocably assign to us all your right, title and interest in and to the Feedback and agree that we have no obligation to pay royalties or other compensation to you or to any third parties arising from the Feedback.

Third Party Beneficiaries. The Sonatype Entities are intended third party beneficiaries of this EULA.

Survival. Any provisions to be performed and any rights and obligations of the parties that by their nature survive termination or expiration of this EULA will survive any such termination or expiration.

Interpretation. In this EULA, the words "include" and "including" mean "including but not limited to." Headings are for convenience only.

10. DEFINITIONS

"Affiliate" means any legal entity that directly or indirectly controls, is controlled by, or is under common control with, such entity. "Control" means ownership of fifty percent (50%) or more of the voting rights or interest in the entity.

"Authorized Users" means your designated users who receive a valid User ID or other access credentials to access the Subscription Services under your account.

"Authorized Reseller Agreement" means the agreement between End User and Authorized Reseller governing End User's purchase of the Services from Authorized Reseller.

"Authorized Reseller" means the entity that has been authorized and certified by Sonatype to deliver the Subscription Services and that resells the Subscription Services to the End User pursuant to the Authorized Reseller Agreement.

"Confidential Information" means information or materials provided by one Party to the other which is identified verbally, visually, or in writing, that is designated as confidential or proprietary or that a reasonable person would understand to be confidential or proprietary, but does not include any information or materials that:

"Data Protection Laws" means any applicable law that governs the security, privacy, or protection of personal data or personally identifiable information.

"Documentation" means user guides, manuals, operating and training materials for the Subscription Services, in the form of hard copy, online, or electronic documentation.

"End User Data" means any data and other content made available to Sonatype by End User in the provision of using the Subscription Services.

"Fees" means the applicable fees to be paid by Authorized Reseller for provision of the Subscription Services to End User, as set forth in the Order and in the Authorized Reseller Agreement.

"Force Majeure Event" means unexpected situations or events that are beyond our or your control and prevent us from performing our obligations. This includes acts of war, terrorism, natural disasters, fires, earthquakes, hydrometeorological, civil unrest, acts of terror, strikes, or other labor problems (other than those involving our employees), global health emergencies (such as pandemics), communications outages, internet service failures, or government restrictions.

"Intellectual Property Rights" means the legal rights held by the owner of a copyright, patent, trademark, trade secret, moral right, database right or other intellectual property right.

"Order" means a written purchase order, quotation, or Affiliate Order Form.

"Protected Information" means (or information protected information related to sons or affinity, physical, physiological, genetic, mental, economic or cultural identity of a natural person, or information that is protected under privacy laws, guidelines or regulations, or information that may be deemed to be sensitive and to protected under applicable law.

"Solon Materials" means any proprietary materials or tools developed by Sonatype prior to the commencement of this Agreement or during the term of this Agreement, and any Software, Documentation, designs, templates, reports, prototypes, documents, technology, interfaces, processes, logo, data, diagrams, flowcharts, and other materials, including, without limitation, any modifications, derivatives, or improvements to any other Solon Materials or Deliverables, regardless of which Party first develops the Solon Materials, whether pre-existing or developed during the term of this EULA.

"Sonatype Entities" means Sonatype, Inc., Sonatype Pty Ltd. and Sonatype Limited (Authorized Reseller Agreement and Sonatype Entities are collectively or individually).

FEEDBACK/ MAINTENANCE AND SUPPORT SERVICES

The addendum describes the maintenance and support services that Sonatype provides to its customers, including End User, in connection with the Subscription Services, as set forth in the Agreement.

1. DEFINITIONS

"Customer Success Representatives" means the Customer Success team mentioned appointed in accordance with your subscription level as your relationship management and support contact.

"Authorized Support Users" means your personnel representatives who coordinate with us for the provision of support services in accordance with the Support Level as the Subscription Term.

"Business Day" means Monday 8:00 am Sonatype Monday to Friday (excluding Public Holidays) in the time zone that is your headquarters or principal place of business.

"Disaster" means an incident that significantly degrades or damages our IT infrastructure systems, or causes the Subscription Services to be unavailable for a period of time, as set forth in the Service Level Agreement.

"Resolution" means an implementation or material reduction in the quality of the Subscription Services, or a workaround, that:

- Reduces our available to the current release of the Subscription Services;
- the Subscription Services working as designed or as described in the Documentation;
- a public advisory/notification, such as an internet advisory, bulletin, or blog, or other telecommunications related emergency;
- performance and/or deterioration, attributable to a third party application or product, e.g., latency, or slowness;
- any changes required or other administrative service request (these are not considered Incidents and will be excluded from the Service Level Agreement);
- an event that requires code changes to the Subscription Services; and
- interruptions or material degradation, not attributable to a third party application.

"Product Technical Support" means a desired service support model for the delivery of the Support Services.

"Recovery Point Objective" means the amount of elements data measured in minutes that may potentially be lost due to Disaster.

"Recovery Time Objective" means the amount of time measured in minutes that it takes to restore the Subscription Services as defined in the recovery point due to a Disaster.

"Service Level Agreement" means the service levels set forth in the Section 3 of the Support Service Level Agreement, which is incorporated into and part of the Agreement.

"Resolution" means an Implementation or material reduction in the quality of the Subscription Services, or a workaround, that:

- Reduces our available to the current release of the Subscription Services;
- the Subscription Services working as designed or as described in the Documentation;
- a public advisory/notification, such as an internet advisory, bulletin, or blog, or other telecommunications related emergency;
- performance and/or deterioration, attributable to a third party application or product, e.g., latency, or slowness;
- any changes required or other administrative service request (these are not considered Incidents and will be excluded from the Service Level Agreement);
- an event that requires code changes to the Subscription Services; and
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"Service Level Agreement" means the service levels set forth in the Section 3 of the Support Service Level Agreement, which is incorporated into and part of the Agreement.

"Subscription Services" means the Sonatype Subscription Services, as ordered by Customer and provided by Sonatype, which are hosted, accessed, and provided to Customer on a subscription basis.

"Subscription Services Defined Information" means the material that Sonatype provides to Customer in connection with the Subscription Services, as specified in the applicable Order, which may include, without limitation, Documentation, and other information and materials related to access, improve, monitor, support, and operate the Services.

2. CONFIDENTIALITY AND PUBLICITY

Confidentiality. Each party shall keep in confidence all Confidential Information belonging to the other party. Each party may disclose Confidential Information only to its employees and contractors on the receiving party's side who need such Confidential Information for such receiving party's use only under the Confidential Information with its Affiliates (to its professional advisors) or to its professional advisors, in each case, subject to nondisclosure obligations at least as stringent as those herein, and shall be responsible for the acts and performance under this EULA.

Publicity. Sonatype may use the Customer Name in its marketing materials and on its public domain website and other promotional materials to identify End User as a customer of Sonatype. End User may withdraw its consent to Sonatype's use of the Customer Name by written notice to Sonatype.

3. INDEMNIFICATION

Indemnification by us. We agree to indemnify and defend and pay all reasonable attorneys' fees and expenses and all damages, costs and expenses, including settlement costs, and any amount that a third party obtains against End User to the extent arising from any claim that the Software, when used by Authorized Users in accordance with the Agreement, infringes any Intellectual Property Rights right of privacy or other right of a third party ("**Indemnified Claim**"). Our obligations under this Section 3.1 are conditioned on:

Indemnification by End User. End User agrees to indemnify and defend and pay all reasonable attorneys' fees and expenses and all damages, costs and expenses, including settlement costs, and any amount that a third party obtains against us to the extent arising from any claim that End User's use of the Services or Software in violation of the Agreement, or End User's or its Authorized Users' gross negligence or willful misconduct ("**Indemnified Claim**").

4. TERM AND TERMINATION; SUSPENSION OF SERVICES

Term of the EULA and Termination. The term of the EULA commences on the first date you access the Subscription Services and unless further terminated in accordance with this Section 4 or the Agreement, shall remain in effect for the Subscription Term. The Subscription Term may be renewed by End User in accordance with the Agreement. Either party may terminate the Agreement for cause upon: (a) the other party's material breach of the Agreement if such breach is not cured within 30 days after the other party receives written notice of such breach (or, if such breach is not reasonably susceptible to cure within such period, then such other party shall have such additional time as is reasonably necessary to cure such breach, provided that such other party shall at all times during such 30 day period have taken reasonable steps to cure such breach and shall continue to take such steps until such breach is cured); or (b) the other party ceases its business operations or becomes subject to insolvency proceedings (and such proceedings shall not be dismissed within 90 days of commencement).

Effects of Expiration or Termination. Effective immediately upon expiration or termination of the Agreement for any reason, End User's rights to use the Services and all Software and other Confidential Information of Sonatype, which shall be deemed Sonatype Confidential Information, shall immediately terminate. End User shall immediately cease all use of the Services and destroy all copies of the Software and other Confidential Information in its possession. Sonatype will not be liable to End User for refunds or for any payments End User may have made to Sonatype in connection with the Services or Software, or for any other damages, costs, or expenses in connection with the termination of the Agreement. Sonatype may also terminate or suspend any Services or Software provided at no charge or on a free trial basis for any reason or no reason. Upon termination or expiration of the Agreement, End User will pay Sonatype for all amounts owed to Sonatype under the Agreement as of the date of such termination or expiration. Upon termination for cause by End User, Sonatype will refund End User a pro rata portion of the fees for the Services paid to Sonatype for the remainder of the then-current Subscription Term. Sections 1.6, 2.2, 2.3, 3, 4, 5, 6.4, 6.5, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18 and 19 shall survive termination of the Agreement.

Suspension of Services. We may temporarily suspend your access to the Subscription Services if we determine that: (a) a threat or attack on the Services is imminent; (b) your use of the Subscription Services disrupts or jeopardizes the security or performance of the Subscription Services or other customers' use of the Subscription Services; or (c) you are in material breach of this Agreement. We will use reasonable efforts to notify you of the suspension and will cooperate with you to remedy the matter promptly so that we may restore your and your Authorized Users' use of the Subscription Services. We may also suspend your or your Authorized User's use of the Subscription Services pursuant to our standard procedures if we believe that you have violated the restrictions in the Section 2.2 of this Agreement, or if we believe that suspension of your or your Authorized User's use of the Services is required by law or judicial or governmental order.

5. DISPUTE RESOLUTION

Dispute Resolution. Representatives of each party will meet in good faith to resolve all disputes, claims, and controversies arising out of or relating to the Agreement ("**Dispute**"). Either party may initiate such a Dispute by sending written notice of the Dispute to the other party. The Parties agree that the Dispute will be deemed to have arisen on the date of the notice and that the party alleged to be in dispute shall have 30 days after receiving the notice to respond to the Dispute.

6. GOVERNING LAW

The validity, construction, and interpretation of this EULA shall be governed by the laws of the country and venue in the table below, without regard to conflicts of law principles or the United Nations Convention on Contracts for the International Sale of Goods, which shall not apply to this Agreement. Notwithstanding the foregoing, either party may at any time seek injunctive relief in any court of competent jurisdiction.

Entity	Governing Law	Jurisdiction of Courts
Sonatype, Inc.	laws of the Republic of Singapore	courts of the Republic of Singapore
Sonatype, Inc.	Laws of the State of New York, USA	federal or state courts in State of New York, USA
Sonatype Pty Ltd.	laws of India	courts of New Delhi, India

7. GENERAL PROVISIONS

Assignment. Neither party to the Subscription Services may be subject to export laws and regulations. We represent and warrant that we are not either: (a) prohibited by any U.S. or other applicable laws or regulations from being in, or transacting business with, any of the Sanctioned Countries, or (b) a person or entity with which a U.S. or other applicable government agency is prohibited from engaging in transactions. End User represents and warrants that it is not (a) a Sanctioned Person or Entity, (b) a person or entity that is ordinarily resident in, or organized under the laws of, the Sanctions Area, or (c) an entity 50% or more owned or controlled by any of the Sanctions Area, or (d) an embargoed country or in violation of an applicable country's export laws or regulations.

FCC Audit Compliance. We have implemented processes that are designed to provide reasonable assurance that our Services are not used in violation of the Federal Communications Commission ("**FCC**") rules and regulations. We will cooperate with the FCC in any FCC audit or inquiry in accordance with the FCC rules and regulations and will take such actions as are agreed upon with the FCC to bring the Services into compliance with the FCC rules and regulations. End User shall cooperate with us and take such actions as are reasonable and otherwise required by the FCC to assist us in complying with the FCC rules and regulations.

US Federal Government. This EULA is the entire agreement between you and us and supersedes all other agreements, proposals, or other discussions between the parties with respect to the subject matter of the Agreement. If any provision of this EULA is deemed or otherwise invalid or unenforceable by a court or other tribunal of competent jurisdiction, the remaining provisions of this EULA will nevertheless be binding and enforceable. Any notice, request, or other communication required or permitted to be given or delivered to any party under or in connection with this EULA shall be in writing and shall be delivered in person, by courier service, by overnight delivery service or by registered or certified mail, postage prepaid, addressed to the party to be served at its address set out in the Order, or such other address as the party may from time to time specify in writing to the other party in accordance with this Section. Such notice, request or other communication shall be deemed to have been duly served if delivered in person when so delivered, by courier service, one (1) business day after deposit with the courier service, or three (3) business days after deposit in the mail.

Waiver. No failure or delay by either party in exercising any right under this EULA will constitute a waiver of any other right or delay or waiver of any other rights or remedies regarding any breach or default by the other party on any right or remedy on any other occasion.

Force Majeure. Neither party shall be liable to the other for any delay or failure in performance of this EULA (other than for the delivery of amounts owed) caused by acts of God, acts of civil or military authority, fire, epidemics, flood, earthquake, riot, war, sabotage, labor shortage or stoppage, failure of power or other utilities, communications or computer (software and hardware) services, in each case, whether such delay or failure is due to acts of or is consequential, wholly or partly, to acts or omissions of third parties (including, without limitation, telecommunications providers and other suppliers to the parties) or any other cause of similar character beyond such party's control, which such party shall not be liable for, or be considered in breach of this EULA, on account of any such delay or failure in performance.

Entire Agreement. This EULA is the entire agreement between you and us and supersedes all other agreements, proposals, or other discussions between the parties with respect to the subject matter of the Agreement. If any provision of this EULA is deemed or otherwise invalid or unenforceable by a court or other tribunal of competent jurisdiction, the remaining provisions of this EULA will nevertheless be binding and enforceable. Any notice, request, or other communication required or permitted to be given or delivered to any party under or in connection with this EULA shall be in writing and shall be delivered in person, by courier service, by overnight delivery service or by registered or certified mail, postage prepaid, addressed to the party to be served at its address set out in the Order, or such other address as the party may from time to time specify in writing to the other party in accordance with this Section. Such notice, request or other communication shall be deemed to have duly served if delivered in person when so delivered, by courier service, one (1) business day after deposit with the courier service, or three (3) business days after deposit in the mail.

Notices. Except as otherwise specifically provided in the Agreement, notices will be sent to the addresses set out in the Order or at such other address as may be specified in writing in accordance with the Agreement and will be deemed to have been received on the first business day after the date of sending.

Feedback. If you provide us Feedback, you agree that we are free to use the Feedback in any way we determine, without obligation to you, and that the Feedback is not your Confidential Information. You hereby irrevocably assign to us all your right, title and interest in and to the Feedback and agree that we have no obligation to pay royalties or other compensation to you or to any third parties arising from the Feedback.

Third Party Beneficiaries. The Sonatype Entities are intended third party beneficiaries of this EULA.

Survival. Any provisions to be performed and any rights and obligations of the parties that by their nature survive termination or expiration of this EULA will survive any such termination or expiration.

Interpretation. In this EULA, the words "include" and "including" mean "including but not limited to." Headings are for convenience only.

8. DEFINITIONS

"Affiliate" means any legal entity that directly or indirectly controls, is controlled by, or is under common control with, such entity. "Control" means ownership of fifty percent (50%) or more of the voting rights or interest in the entity.

"Authorized Users" means your designated users who receive a valid User ID or other access credentials to access the Subscription Services under your account.

"Authorized Reseller Agreement" means the agreement between End User and Authorized Reseller governing End User's purchase of the Services from Authorized Reseller.

"Authorized Reseller" means the entity that has been authorized and certified by Sonatype to deliver the Subscription Services and that resells the Subscription Services to the End User pursuant to the Authorized Reseller Agreement.

"Confidential Information" means information or materials provided by one Party to the other which is identified verbally, visually, or in writing, that is designated as confidential or proprietary or that a reasonable person would understand to be confidential or proprietary, but does not include any information or materials that:

"Data Protection Laws" means any applicable law that governs the security, privacy, or protection of personal data or personally identifiable information.

"Documentation" means user guides, manuals, operating and training materials for the Subscription Services, in the form of hard copy, online, or electronic documentation.

"End User Data" means any data and other content made available to Sonatype by End User in the provision of using the Subscription Services.

"Fees" means the applicable fees to be paid by Authorized Reseller for provision of the Subscription Services to End User, as set forth in the Order and in the Authorized Reseller Agreement.

"Force Majeure Event" means unexpected situations or events that are beyond our or your control and prevent us from performing our obligations. This includes acts of war, terrorism, natural disasters, fires, earthquakes, hydrometeorological, civil unrest, acts of terror, strikes, or other labor problems (other than those involving our employees), global health emergencies (such as pandemics), communications outages, internet service failures, or government restrictions.

"Intellectual Property Rights" means the legal rights held by the owner of a copyright, patent, trademark, trade secret, moral right, database right or other intellectual property right.

"Order" means a written purchase order, quotation, or Affiliate Order Form.

"Protected Information" means (or information protected information related to sons or affinity, physical, physiological, genetic, mental, economic or cultural identity of a natural person, or information that is protected under privacy laws, guidelines or regulations, or information that may be deemed to be sensitive and to protected under applicable law.

"Solon Materials" means any proprietary materials or tools developed by Sonatype prior to the commencement of this Agreement or during the term of this Agreement, and any Software, Documentation, designs, templates, reports, prototypes, documents, technology, interfaces, processes, logo, data, diagrams, flowcharts, and other materials, including, without limitation, any modifications, derivatives, or improvements to any other Solon Materials or Deliverables, regardless of which Party first develops the Solon Materials, whether pre-existing or developed during the term of this EULA.

"Sonatype Entities" means Sonatype, Inc., Sonatype Pty Ltd. and Sonatype Limited (Authorized Reseller Agreement and Sonatype Entities are collectively or individually).

FEEDBACK/ MAINTENANCE AND SUPPORT SERVICES

The addendum describes the maintenance and support services that Sonatype provides to its customers, including End User, in connection with the Subscription Services, as set forth in the Agreement.

1. DEFINITIONS

"Customer Success Representatives" means the Customer Success team mentioned appointed in accordance with your subscription level as your relationship management and support contact.

"Authorized Support Users" means your personnel representatives who coordinate with us for the provision of support services in accordance with the Support Level as the Subscription Term.

"Business Day" means 8:00am Sonatype Monday to Friday (excluding Public Holidays) in the time zone that is your headquarters or principal place of business.

"Disaster" means an incident that significantly degrades or damages our IT infrastructure systems, or causes the Subscription Services to be unavailable for a period of time, as set forth in the Service Level Agreement.

"Resolution" means an Implementation or material reduction in the quality of the Subscription Services, or a workaround, that:

- Reduces our available to the current release of the Subscription Services;
- the Subscription Services working as designed or as described in the Documentation;
- a public advisory/notification, such as an internet advisory, bulletin, or blog, or other telecommunications related emergency;
- performance and/or deterioration, attributable to a third party application or product, e.g., latency, or slowness;
- any changes required or other administrative service request (these are not considered Incidents and will be excluded from the Service Level Agreement);
- an event that requires code changes to the Subscription Services; and
- interruptions or material degradation, not attributable to a third party application.

"Product Technical Support" means a desired service support model for the delivery of the Support Services.

"Recovery Point Objective" means the amount of elements data measured in minutes that may potentially be lost due to Disaster.

"Recovery Time Objective" means the amount of time measured in minutes that it takes to restore the Subscription Services as defined in the recovery point due to a Disaster.

"Service Level Agreement" means the service levels set forth in the Section 3 of the Support Service Level Agreement, which is incorporated into and part of the Agreement.

"Subscription Services" means the Sonatype Subscription Services, as ordered by Customer and provided by Sonatype, which are hosted, accessed, and provided to Customer on a subscription basis.

"Subscription Services Defined Information" means the material that Sonatype provides to Customer in connection with the Subscription Services, as specified in the applicable Order, which may include, without limitation, Documentation, and other information and materials related to access, improve, monitor, support, and operate the Services.

2. SUPPORT TERM

1. Support Term

We provide Support Services to assist you in identifying and resolving technical queries and problems with the Subscription Services.

1. You will use the Support Services to submit Support requests as access to our incident management system is provided to you. Support Services will be provided in accordance with your subscribed Support Plan.
2. We will assign each Incident a priority based on our reasonable efforts to respond to or support requests within the timeframes listed in the Support Services.

2. Conditions and Exclusions

- You will use the Support Services as a substitute for training to use the Subscription Services.
- We will provide support requests within Support Level as the Support Plan.
- We will provide or with complete information when making support requests. We will not be responsible for any delay in providing Support Services if we reasonably believe that it is necessary to provide information requested by you to be incomplete.
- The Support Desk does not include support related to Incidents caused by (a) your incorrect configuration of the Subscription Services, (b) your failure to implement Resolutions previously provided to You or (c) your failure to implement Updates.

| Support Plans | Standard Pl

Governance

Risk

Finance

Contract Management Best Practices

Contract Drafting

Contract Extraction

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